

TENTATIVE RULINGS

FOR: August 18, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Aida D. Nunez

25PR000136

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to September 15, 2026, at 8:30 a.m. in Dept. A to permit Applicant to provide sufficient notice of the hearing.

The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190,

1204-05.) Applicant failed to provide adequate notice of the hearing date. (See Code Civ. Proc. §§1005, subd. (b) and 1010.6, subd. (a)(3)(B).) The proof of service indicates that notice and the moving documents were mailed on July 30, 2026. However, July 22, 2026, was the last day to timely serve notice by mail of the August 18, 2026, hearing.

.....

In The Matter of The Bressler Irrevocable Trust

26PR000097

VERIFIED PETITION TO COMPEL TRUST ACCOUNTING; TO COMPEL ACCOUNTING OF ACTS OF ATTORNEY-IN-FACT; FOR BREACH OF FIDUCIARY DUTY AND SURCHARGE; FOR REMOVAL OF TRUSTEE; AND FOR DOUBLE DAMAGES UNDER PROBATE CODE § 859

APPEARANCE REQUIRED for case management hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Marylouise Avist v. Nathan Fite et al

25CV000794

MOTION FOR LEAVE OF COURT TO FILE A SECOND AMENDED COMPLAINT

TENTATIVE RULING: The Court appoints Daniel DeWeese as Special Administrator of the Estate of Marylouise Avist, exclusively for purposes of prosecuting the instant action, and in that capacity orders that he be substituted in as Plaintiff of record in this action.

The Motion is GRANTED IN PART. The request to deem the Second Amended Complaint filed is DENIED. Mr. DeWeese is GRANTED 10 Court days’ leave to file a Second Amended Complaint in substantially the same form as that attached as Exhibit 6 to the Declaration of Matthew Russell filed May 28, 2026.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL BACKGROUND

On April 15, 2025, Marylouise Avist commenced the instant action by filing a complaint asserting claims sounding in negligence and premises liability against the defendants. On April 23, 2025, Ms. Avist filed a First Amended Complaint (FAC). On April 10, 2026, Ms. Avist filed a Motion for Leave to File a Second Amended Complaint (April 10 Motion re: SAC), and set